

5	Castellanos v. Mercedes-Benz USA, LLC	Defendant Fletcher Jones Motor Cars, Inc. (FJMC) moves for summary judgment on the Complaint filed by Plaintiffs Enrique Rodriguez Castellanos and Zachary Ian Ruiz. Specifically, FJMC moves for summary judgment on the third cause of action for negligent repair, which is the only cause of action asserted against FJMC. For the following reasons, the motion is DENIED. Under the revised deadlines of Code Civ. Proc. § 437c effective January 1, 2025, a summary judgment motion must be served at least 81 days before the hearing date. If notice is served by express mail or “another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.” (Code Civ. Proc. § 473c(a)(2).) This notice period provided by Code Civ. Proc. § 437c is mandatory. (<i>Id</i>; see <i>Lackner v North</i> (2006) 135 Cal.App.4th 1188, 1207-1208.) The court does not have discretion to shorten the notice period without the parties’ consent. Code Civ. Proc. § 437c(a) gives the court power to shorten time on other summary judgment time requirements, but not on the 75-day notice of hearing. (<i>McMahon v. Superior Court</i> (2003) 106 Cal.App.4th 112, 116.) The hearing on this motion is set for April 17, 2025. 81 days before April 17, 2025 is January 26, 2025. Two court days before January 26, 2025 is January 23, 2025. FJMC served the motion by email on January 30, 2025 – 7 days late. Thus, the motion must be denied as FJMC did not provide sufficient notice of the motion. Additionally, while the proofs of service indicate all the documents were served by email, the electronic service address of the person making the service was not provided in violation of Code Civ. Proc. § § 1013b(b). FJMC to give notice.
6	Gonzalez v. Phillips	Defendants Cardflex, Inc. d/b/a Cliq, and Andrew Phillips’ Motion for Extension of Deadline re Motion for [Re]consideration is DENIED. “In general, a party may move for reconsideration of a motion within 10 days after the motion is denied, based upon ‘new or different facts, circumstances, or law.’ [Citation.] ... The overriding purpose of Code of Civil Procedure section 1008 is to prevent duplicative motions. [Citation.]” (<i>UAS Management, Inc. v. Mater Misericordiae Hospital</i> (2008) 169 Cal.App.4th 357, 367; see <i>Myers v. Superior Court</i> (2022) 78 Cal.App.5th 1127, 1135 [motion for reconsideration properly denied because moving party failed to timely file its motion]; see <i>Advanced Building Maintenance v. State Comp. Ins. Fund</i> (1996) 49 Cal.App.4th 1388, 1392 [“The motion for reconsideration must be made within 10 days after service of written notice of entry of the order”].) In <i>Advanced Building Maintenance</i>, the amended notice of ruling on demurrer and motion to strike was served on October 12, 1994, such that the motion for reconsideration had to be filed by October 22, 1994. (<i>Advanced Building Maintenance v. State Comp. Ins. Fund</i> (1996) 49 Cal.App.4th 1388, 1392.) However, respondent did not file the motion for reconsideration until October 31, 1994, which the trial court denied